

## 1 SENATE BILL NO. 525

2 INTRODUCED BY T. MANZELLA

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4 A BILL FOR AN ACT ENTITLED: "AN ACT AUTHORIZING A SCHOOL DISTRICT OR PUBLIC CHARTER  
5 SCHOOL TO USE PAID OR VOLUNTEER SCHOOL CHAPLAINS TO PROVIDE SUPPORTS, SERVICES,  
6 AND PROGRAMS TO STUDENTS; REQUIRING A SCHOOL DISTRICT OR PUBLIC CHARTER SCHOOL TO  
7 ADOPT A SCHOOL CHAPLAIN POLICY WITH MINIMUM REQUIREMENTS; PROVIDING REQUIREMENTS  
8 FOR A SCHOOL CHAPLAIN TO BE ELIGIBLE TO WORK IN A SCHOOL; REQUIRING PUBLICATION OF A  
9 LIST OF SCHOOL CHAPLAINS AND THEIR RELIGIOUS AFFILIATIONS ON A SCHOOL DISTRICT OR  
10 PUBLIC CHARTER SCHOOL WEBSITE; AUTHORIZING A SCHOOL DISTRICT OR PUBLIC CHARTER  
11 SCHOOL TO ENGAGE A SCHOOL CHAPLAIN IN LIEU OF A SCHOOL COUNSELOR; AND PROVIDING AN  
12 EFFECTIVE DATE."

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14 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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16 NEW SECTION. **Section 1. School chaplains.** (1) A school district or a public charter school may  
17 adopt a policy to authorize paid or volunteer school chaplains to provide supports, services, and programs to  
18 students as assigned by the district school board or the charter school governing board, if different. The policy  
19 adopted pursuant to this section must, at a minimum:

20 (a) describe the supports, services, or programs a school chaplain may be assigned;  
21 (b) require that a principal of a school with a school chaplain shall inform all parents of the  
22 availability of the supports, services, and programs provided by the school chaplain; and

23 (c) require written parental consent before a student participates in or receives supports, services,  
24 or programs from a school chaplain who is included on the list of school chaplains required in subsection (3).

25 (2) A school chaplain must meet the background check requirements that apply to noninstructional  
26 school district employees or contractors. To be eligible for appointment as a school chaplain, an individual must  
27 be 18 years of age or older and of good moral character.

28 (3) A school district or public charter school that adopts a school chaplain policy shall publish the

1 list of school chaplains, including each school chaplain's religious affiliation, if applicable, on the school district  
2 or public charter school website.

3 (4) A school district or a public charter school may engage a school chaplain instead of a school  
4 counselor to perform the duties required of a school counselor.

5 (5) A school chaplain employed under this section is required to be certified by the superintendent  
6 of public instruction pursuant to 20-4-106(2).

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8 NEW SECTION. Section 2. Codification instruction. [Section 1] is intended to be codified as an  
9 integral part of Title 20, chapter 7, part 13, and the provisions of Title 20, chapter 7, part 13, apply to [section 1].

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11 NEW SECTION. Section 3. Effective date. [This act] is effective July 1, 2025.

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